

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN PARAGUAY

Complete Community Opposition How-To

This guide uses the terms and bodies you'll actually run into in Paraguay — the constitutional guarantee of communal land, INDI, the amparo, consulta, the environmental licence, and above all the Inter-American Commission and Court of Human Rights — and explains each in plain words the first time.

INTRODUCTION & FRAMEWORK

In the dry scrub of the Chaco, the Enxet community of **Sawhoyamaxa** spent a generation fighting to return to land that had been fenced off and sold to ranchers while they were pushed to the roadside — 146 families, more than 600 people, living in makeshift shacks beside a highway, within sight of the cattle estates on their own ancestral land. Their claim had been pending in Paraguay's own institutions since 1991 and went nowhere. So they did what few communities anywhere manage: they took their State to an international court. In 2006 the **Inter-American Court of Human Rights** — whose judgments bind Paraguay — ruled that the State had violated their rights and **ordered it to return the ancestral land**. Even then the government stalled for years, hiding behind the ranchers' private titles, and the Senate rejected expropriation in 2009. So in 2013 the community **re-occupied part of their own territory** and kept pressing — with the human-rights organisation **Tierraviva** and international allies like Amnesty International — until in 2014 Congress passed, and the President signed, **Law 5194, expropriating 14,400 hectares and restoring them to Sawhoyamaxa**: the first time the Paraguayan State had ruled for an Indigenous community in a land fight of this kind. A community with almost nothing beat ranchers, inertia, and its own government — because it found a lever that reached above the national system, and never let go.

The Enxet community of Sawhoyamaxa, who won back their ancestral land, drew on a toolkit — a slow one — whose most powerful lever reaches above the national system. The Constitution **guarantees Indigenous communities their communal lands**, and the **INDI** (the Indigenous institute) is meant to secure them. A project needs an **environmental licence** with assessment, and **consulta** — prior consultation — is required where Indigenous communities are affected. The **amparo** is a fast constitutional action; protest, re-occupation, petition, and litigation are lawful. And above all sits the **Inter-American system** — the Commission and the Court in Costa Rica, whose judgments bind Paraguay and have ordered the State again and again to return stolen land. But these tools have real limits, and this guide states them plainly. Sawhoyamaxa's win took a **generation** — 1991 to 2014 — and even a binding international judgment did not move the government until the community re-occupied its land and mobilised relentlessly. Domestic institutions are weak and often captured; the powerful hide behind private titles; and the fight demands endurance measured in decades. So aim for what these tools can deliver, and settle in for the long haul.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and claims, and a chain breaks at its weakest link. A Paraguayan land or development fight turns on the **constitutional land guarantee** and **INDI**; on the **environmental licence** and **consulta**; on the **amparo** and the domestic courts; and — when those fail — on the **Inter-American Commission and Court**, whose orders bind the State. Every one of those is a link you can grab — and the Inter-American system is the one that reaches highest. **Find the one closest to**

your hand and pull.

Be Honest About Which Fight You're In

Before you spend a year — or a decade — on this, work out your real situation:

- **If you're an Indigenous community fighting for your land, the Inter-American system is your sharpest lever** — it has ordered the State to return land again and again.
- **If a project needs a licence or affects your community, the environmental assessment and consulta are real grounds.**
- **If the domestic system stalls or is captured, don't stop at it** — escalate to the Commission, seek precautionary measures, and mobilise.
- **If the powerful hide behind private titles and inertia, expect a long fight** — pair the legal case with re-occupation, mobilisation, and attention, and endure.

Read the whole guide once before you move. Two habits run through it: **use every lever together** — the land guarantee, INDI, the licence and consulta, the amparo, the Inter-American system, re-occupation, and mobilisation — and **never let go**, because here the win goes to those who outlast. That's how Sawhoyamaxa won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

For Indigenous land, the Constitution guarantees communal territory, and **INDI** is meant to secure and title it — often slowly. A development project needs an **environmental licence** from the environment ministry, with assessment, and **consulta** where Indigenous communities are affected. The domestic **courts** hear the **amparo** and other challenges. And above them all sits the **Inter-American system** — the **Commission** and the **Court** — whose findings and judgments **bind Paraguay** and can order the State to act. Know which of these you can reach, and aim high.

How a Project Moves — and Where You Jump In

The land claim and INDI. A community claims its communal land through INDI. *Your opening:* file and press the claim — and, when it stalls, escalate.

The environmental licence and consulta. A project needs its licence and, for Indigenous communities, prior consultation. *Your opening:* demand genuine consulta and attack a defective assessment.

The domestic courts and the amparo. *Your opening:* an amparo against an unlawful act or a stalled duty.

The Inter-American system. *Your opening — the decisive one:* when the national system fails, petition the Commission, seek precautionary measures, and pursue a binding judgment.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — the ranchers, companies, and any foreign investors hiding behind titles. **What it still needs** — the licence, the consulta, a clear title: whatever's missing is the soft spot. **What binds the State internationally** — because a right violated is a case for the Inter-American system.

Who's Supposed to Be Watching

Each is an ally or an arena. **INDI** and the environment ministry are meant to secure land and run the licence — press them. The domestic **courts** hear the amparo. The **Inter-American Commission and Court** bind the State when the rest fails. And Paraguay's **human-rights organisations (like Tierraviva)**, **peasant and Indigenous movements**, **international allies (like Amnesty International)**, and **press** are the forces that reach furthest — the coalition that carried Sawhoyamaxa.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether a bindable right is engaged, whether you can reach the Inter-American system, and how long you can endure.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Press the land claim through INDI	15–35%	years	low	Land titled (slowly)
Demand consulta / attack the licence	20–45%	months–yr	low	Project stalled; assessment redone
Amparo (domestic courts)	20–45%	months–yr	low–mod	Unlawful act or stalled duty addressed
Inter-American Commission (petition)	30–55%	1–several yr	low	Findings against the State; pressure
Precautionary measures (Commission)	30–55%	weeks–months	low	Urgent protection ordered
Inter-American Court (binding judgment)	40–65%	years	mod	State ordered to return land / act
Re-occupation + mobilisation + attention	25–50%	months–yr	low	Pressure that forces the State to comply
Everything together (Indigenous land, Inter-American, endurance)	45–70%	years–decade	mod	Land restored; project stopped
Everything together (domestic only)	15–40%	years	mod	Delayed; sometimes stalled

The lever that moves the needle most is the **Inter-American system** — the Commission's petitions and precautionary measures and the Court's binding judgments — paired with **re-occupation and mobilisation** to force compliance. Sawhoyamaxa shows the ceiling (land restored by law) and the honest floor (it took a generation, and even a binding judgment needed re-occupation to bite). So aim for land restored, a project stopped, consultation forced, and delay — and endure.

On cost: pressing claims, demanding consulta, and mobilising are cheap; and human-rights organisations like Tierraviva take these cases to the Inter-American system, where a community with almost nothing reached a court whose orders bind the State. The great requirement is not money — it's endurance.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this land claim, this skipped consulta, this bindable right — is strong. Answer five questions in writing.

1. What is it, and who's behind it? Name the project, the ranchers or company, and any foreign investors hiding behind titles.

2. Where is it, and what does it touch? Establish your **communal or ancestral land**, and map it over your territory, forest, and water. **Your constitutional right to communal land is your sharpest lever**, and a violation of it is a case for the Inter-American system.

3. What stage is it at, and what's the next deadline? Is the land claim pending at INDI? Is a licence or consulta due? Has the domestic system stalled (the signal to escalate)? Some steps are time-bound; the land fight is long.

4. What does it still need that it lacks? A clear title, the licence, genuine consulta. The missing piece is the soft spot.

5. Who else is affected, and who already opposes it? Neighbouring communities, human-rights and Indigenous organisations, international allies. Sawhoyamaya joined its people to Tierraviva and Amnesty.

What this looks like in real life. An Indigenous community learns its ancestral land, held as ranch estates, will never be returned through the slow domestic system. The five questions yield: ranchers behind private titles; ancestral land and a violated right (the Inter-American lever); a claim stalled at INDI; a project or occupation needing a clear title; and a coalition with a human-rights organisation. That's the Sawhoyamaya pattern — press the claim, escalate to the Inter-American system, re-occupy, and endure.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof. Build it in three layers.

Layer one: the paper trail. Get the documents the fight rests on — your land claim and its history at INDI, the environmental licence and assessment, the consulta record (or its absence), the ranchers' or company's titles, and the record of the State's delay. Then read them for what they show — a claim ignored for decades, a licence without consulta, a right violated.

Layer two: the ground truth. Prove your connection to and use of the land — dated, located photographs, testimony of elders, and the history of your occupation and displacement — plus the harm the project would do. This is the human core of an Inter-American case.

Layer three: the map of territory and harm. Lay the project and the ranch titles over your ancestral territory, so the dispossession and the harm are undeniable. Walking into INDI, the domestic courts, or the Inter-American Commission with your claim, the State's delay, and that map documented is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **Your land claim and its history, the licence and assessment, the consulta record, the opposing titles** — from INDI, the environment ministry, and the land registry.

- **Proof of your connection to the land** — photographs, elders' testimony, the history of occupation and displacement.
- **The record of the State's delay** — the years of inaction that ground an Inter-American case.
- **The territory-and-harm map** — your ancestral land, the ranch titles, and the project, laid together.
- **Named testimony** — of elders and community members, gathered with care.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; a community that endures, joined to strong allies, gives you power — the Sawhoyamaxa model. Build in four moves.

Start with a united community. The whole community, its elders and leaders, decided and acting together — because this is a long fight, and unity is what carries it across decades.

Find a human-rights organisation early. Sawhoyamaxa reached the Inter-American Court because **Tierraviva** and international allies took its case there. Reach the human-rights and Indigenous organisations that know the Inter-American system — they are how a community with almost nothing reaches a court that binds the State.

Prepare for re-occupation and mobilisation. Even a binding judgment did not move the government until Sawhoyamaxa re-occupied its land. Plan, collectively and with legal advice, for the sustained mobilisation — and, where warranted, the re-occupation — that forces compliance.

Build to last — for years. Paraguayan land fights run for decades. Build clear roles, a secure shared archive, an inclusive way to decide together, and a plan for the long endurance and its toll — because here the win goes to those who outlast.

STEP 4: LEGAL CHALLENGES & THE INTER-AMERICAN SYSTEM

Law is Paraguay's sharpest lever — but the decisive law is often international, not domestic.

The Land Guarantee, INDI, and the Amparo

Start at home: assert your **constitutional right to communal land**, press the claim through **INDI**, demand **consulta** where you're affected, attack a defective **environmental licence**, and use the **amparo** — a fast constitutional action — against an unlawful act or a stalled duty. These matter, but they are often slow and captured, so treat them as the first stage, not the last.

The Inter-American Commission and Court — the Decisive Lever

When the domestic system fails, escalate to the **Inter-American system**. Petition the **Commission**, which can find the State in violation and press it; seek **precautionary measures** for urgent protection; and pursue a binding judgment from the **Inter-American Court**, whose orders **bind Paraguay** and have repeatedly ordered the State to return stolen land. This is the single most powerful lever a Paraguayan community holds — the one that won Sawhoyamaxa.

Re-occupation and Mobilisation — Making the Judgment Bite

A judgment is not self-enforcing here. Sawhoyamaxa's binding order sat unfulfilled until the community **re-occupied its territory** and mobilised relentlessly, forcing Congress to expropriate and restore the land. Pair the legal victory with sustained, collective pressure — planned with legal advice — to make it real.

The Honest Limits

Straight talk: the Inter-American system is powerful and binding, but it is slow, and even its judgments need mobilisation to bite; the domestic system is weak and captured; and the fight demands a generation's endurance. So use the strong tools — the land guarantee, INDI, consulta, the amparo, and above all the Inter-American system — pair them with re-occupation, mobilisation, and attention, and count land restored, a project stopped, consultation forced, and delay as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

Dispossession becomes a bindable violation. Not "we want our land back" but *"the State violated our rights to property, life, and judicial protection — the Inter-American Court can order it to return our ancestral land."*

Delay becomes the case. *"Our claim sat unanswered for decades — the domestic system failed us, and the international one must act."*

A skipped consulta becomes a flaw. *"This affects our community, and the prior consultation the law requires never happened."*

The endurance becomes a story. *"Six hundred people beside a highway, in sight of their own stolen land, refusing to give up for a generation."*

Match it to the venue: the claim to INDI; the unlawful act to the amparo; the violated right to the Inter-American Commission and Court; the human story to the press at home and abroad.

STEP 5: MEDIA STRATEGY

In Paraguay, national and international attention sustains a decades-long fight and pressures the State to comply with what the courts order. Human-rights networks make the media front reach far.

Lead with the people and the land, not procedure. Not "the claim is pending at INDI" but "six hundred people beside a highway, in sight of their own stolen land, refusing to give up." Use your strongest material: the history of dispossession, dated photographs, elders' voices, and any Inter-American finding backed.

Work several audiences at once. Local and national press build domestic pressure; international human-rights networks reach the Inter-American system and the world, where the State's violations are most exposed. Make it easy: captioned photos, accurate summaries, a map, strong testimony.

Two hard rules. Accuracy above all — one exaggeration can discredit everything. And protect people — plan re-occupation and protest with legal advice, and let the community lead its own story.

EMAILS & LETTERS

Make them your own; keep them short, exact and calm; keep a copy of everything.

8A — Land claim / information (to INDI).

Subject: Reclamo de tierra comunitaria — [comunidad].

"We, the community of [name], assert our constitutional right to our communal land at [location], and request the status of our claim and all related records. [Contact.]"

8B — Demand for consulta / objection to a licence.

Subject: Consulta previa y objeción — [proyecto].

"We, the community of [name], are affected by [project] and demand genuine prior consultation. We object to the licence: [it lacks consulta; the assessment understates the harm]. [Attach evidence.]"

8C — Amparo (to a lawyer).

Subject: Amparo — [acto / proyecto].

"We seek an amparo because [the State has failed its duty / an unlawful act threatens our rights]: [specifics]. [Attach evidence.]"

8D — To a human-rights organisation.

Subject: Possible Inter-American case — [comunidad].

"Our community has fought for our land / against [project] for [years], and the domestic system has failed us. We've gathered [our claim, the State's delay, our history]. We ask for your help to take our case to the Inter-American Commission, as at Sawhoyamaya. [Contact and evidence summary.]"

8E — Petition / precautionary measures (Inter-American Commission).

Subject: Petition and request for precautionary measures — [comunidad] v. Paraguay.

"We petition the Commission: the State has violated our rights to [property, life, judicial protection] by [specifics], and we seek precautionary measures for urgent protection. [Attach evidence.]"

8F — To the State / Congress (compliance / expropriation).

Subject: Compliance with the Inter-American ruling — [comunidad].

"The Inter-American Court has ordered the State to return our land. We call on [INDI / Congress] to comply — to expropriate and restore our territory — without further delay. [Attach the judgment.]"

8G — Letter to the press (here and abroad).

Subject: [Community] fights to reclaim its ancestral land from [project / ranchers].

"For [decades] the people of [name] have lived beside [a highway], in sight of our stolen land. Now [project] threatens it further. We can provide our history, photographs, and testimony. [Contact.]"

8H — Uniting and sustaining the community.

Subject: Our land, our endurance — let's not let go.

"Our land was taken, and the system is slow. At Sawhoyamaya, a community endured a generation, reached the Inter-American Court, re-occupied its land, and won it back by law. If we unite, escalate, and never let go, we can too. Please stand with us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast on the urgent parts (the long fight follows), do these six things, in order:

1. **Assert your communal-land right and file/press the claim at INDI (8A).** That right is your sharpest lever.
2. **Demand consulta and object to any licence (8B).**
3. **Document the dispossession, the harm, and above all the State's delay.**
4. **Reach a human-rights organisation that knows the Inter-American system (8D).**
5. **Petition the Commission and seek precautionary measures for anything urgent (8E).**
6. **Unite the community for the long haul, and prepare mobilisation (8H).**

Even lean, those six assert the land right, open the Inter-American route, and set up the endurance — the Sawhoyamaya path.

WHEN THE SYSTEM IS TILTED

Paraguay's tools are real, but the domestic field is badly tilted, and you must plan for it.

When the domestic system stalls or is captured. That's the signal to escalate — don't wait a decade at INDI or in the domestic courts. Take the case to the Inter-American Commission and Court.

When the powerful hide behind private titles. A binding Inter-American judgment can override the excuse — press the State to expropriate and restore, as at Sawhoyamaya.

When even a binding judgment isn't enforced. Pair it with re-occupation and mobilisation, planned with legal advice, to force compliance.

When the fight drags for decades. Build for endurance — shared leadership, a durable coalition, and international attention — because here the win goes to those who outlast.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Paraguay has serious, documented problems with the capture of land, INDI, and the courts by ranching and business interests, so this matters.

How to spot it. Land claims ignored for decades while ranch titles are respected; licences without consulta; INDI or courts siding with the powerful; benefits to the connected while communities are pushed to the roadside.

Who's supposed to guard against it. The **Contraloría** examines public money. The **Public Ministry** handles crime and graft. The **Inter-American system** can find the State in violation and order it to act. And Paraguay's **human-rights organisations and press** have exposed captured deals.

How to fight it safely. Document precisely and factually — how the claim was ignored, who benefits, what the law and the Constitution required — and keep clear the line between what you can prove and what you suspect. Route serious evidence to the Contraloría, the Public Ministry, the Inter-American system, and trusted journalists rather than making accusations you can't back. Pair the exposure with the Inter-American

case.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, over the long haul. The documents and the record of delay build your case; the communal-land right aims it; a united, enduring community is the muscle; INDI, the amparo, and above all the Inter-American system press the case; re-occupation and attention force compliance. Together they multiply. One at a time, they stall.

Early on (weeks–months): assert the land right and press the INDI claim; demand consulta and object to any licence; document the dispossession and the State's delay; reach a human-rights organisation; unite the community.

In the thick of it (months–years): file the amparo; petition the Inter-American Commission and seek precautionary measures; open the media front; build for endurance.

The long haul (years–decade): pursue the binding Inter-American judgment; re-occupy and mobilise to force compliance; press the State to expropriate and restore; hold the line for land restored, a project stopped, consultation forced, and delay.

FINAL ASSESSMENT

Winning a land or development fight in Paraguay can be done — a community of 600 people beside a highway took their State to an international court and won their ancestral land back by law. Hold both truths. Paraguay's tools are real: a constitutional guarantee of communal land; INDI; an environmental licence and consulta; the amparo; and, above all, the Inter-American Commission and Court, whose orders bind the State. And the constraints are real: a weak, captured domestic system; the powerful hiding behind private titles; judgments that need mobilisation to bite; and a fight measured in decades.

Here's the discipline that wins. Start at home — assert your communal-land right, press it through INDI, demand consulta, use the amparo — but don't stop there when it stalls. Escalate to the Inter-American system, the single most powerful lever you hold: petition the Commission, seek precautionary measures, and pursue a binding judgment from the Court. Then make the judgment bite — re-occupy, mobilise, and press the State to expropriate and restore, planned with legal advice and carried by a united community. Build for endurance, and never let go, because here the win goes to those who outlast. Count land restored, a project stopped, consultation forced, and delay as wins. That's what Sawhoyamaya did — the land right, the Inter-American Court, re-occupation, and a generation's endurance together. So can you.